

7. Add to order how notice of entry of judgment will be given.
8. Select date for review of administrator's report and add a paragraph concerning the filing and review of the report to the order.
9. Correct order ¶ 16 to \$12,000 for administrator's fee.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2402543	RICHARDSON vs ATRIA MANAGEMENT COMPANY, LLC	MOTION FOR FINAL APPROVAL OF CLASS ACTION SETTLEMENT

Tentative Ruling: Appearances requested to discuss:

1. Counsel's declaration does not provide calculations for the PAGA penalties, including the nature of the violations; number of violations; total amount of penalties if the allegations are proven; likely amount of penalties at trial; likelihood that the violations are knowing and intentional; the imposition of penalties would be unjust, arbitrary, oppressive or confiscatory; how the amount of the agreed-upon penalties was calculated; and any other factors to determine that the penalties are fair.
2. Were named plaintiffs a plaintiff in any other PAGA action?
3. Was a bidding process used to select Simpluris and was it the low bidder?
4. No declaration from Simpluris.
5. Are enhancements of \$15,000 to four plaintiffs warranted?
6. Order references PAGA claims that "reasonably could have been alleged" in the complaint and the PAGA notice—are there any potential violations that were not alleged but which the parties want to include?
7. Need to select date for filing and review of report from Simpluris about distribution of funds (order, ¶ 15).
8. Should we add the term judgment to the title of the order and should we reference *Arias* in the text of the order?

4.

CASE #	CASE NAME	HEARING NAME
CVRI2405457	AYALA vs EISENHOWER IMAGING CENTER, LLC	MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT AND MOTION FOR AWARD OF ATTORNEYS' FEES AND COSTS; MEMORANDUM OF POINTS AND AUTHORITIES

Tentative Ruling:

Revise judgment to indicate the title, filing date, and name of document to which the settlement agreement is attached, does not require the envelopes containing the checks to state YOUR CLASS ACTION SETTLEMENT CHECK IS ENCLOSED, does not

require the administrator to send a reminder postcard if check is not cashed within 60 days of mailing, does not require that the current employees can receive their distributions delivered to the employees at their place of employment, is if the distribution is returned and the administrator is unable to locate a valid mailing address and does not describe notice of entry of judgment. CMO ¶ H.9-15.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2405959	THOMAS vs RAINTREE SYSTEMS, INC.	MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT; MEMORANDUM OF POINTS AND AUTHORITIES

Tentative Ruling: Appearances requested to discuss:

1. Limit the period checks will be negotiable to 180 days (not at least 180 days). Add that administrator will send a reminder postcard to anyone who does not cash their check within 60 days of mailing. Order ¶ 22.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2601382	SAWICKY vs CITY OF LAKE ELSINORE	DEMURRER ON COMPLAINT FOR OTHER REAL PROPERTY

Tentative Ruling: No tentative ruling; no opposition is reflected on the register of actions.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2601382	SAWICKY vs CITY OF LAKE ELSINORE	MOTION TO STRIKE COMPLAINT ON COMPLAINT FOR OTHER REAL PROPERTY

Tentative Ruling: No tentative ruling; no opposition is reflected on the register of actions.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2602521	WHITE vs UNITED MEDICAL DOCTORS	MOTION FOR KENNEDY M. BRIAN TO APPEAR AS COUNSEL PRO HAC VICE

Tentative Ruling: Grant; court will sign proposed order after hearing.